

if he contract for the sale, cannot himself take proceedings to enforce specific performance (*g*) though the purchaser may do so (*h*), and though the settlor himself may defeat the trust by a subsequent sale, the *heir* or *devisee* of the settlor has no such power (*i*); [and where a voluntary [*77] settlement is made of land *subject to an existing mortgage, and the property is sold by the mortgagee under his power of sale, the settlement is not thereby defeated as to the surplus proceeds of sale after satisfying the mortgage (*a*).] But chattels *personal* (in which respect they differ from chattels *real*) (*b*) are not within the statute 27 Eliz. c. 4, relating to *purchasers*, and therefore a voluntary settlement of chattels personal cannot be defeated by a subsequent sale (*c*). But voluntary deeds may acquire a validity by matter *ex post facto*, as by a sale or mortgage by the volunteer on the footing of the voluntary deed, and this doctrine has been extended to the disposition for valuable consideration of an equitable interest (*d*).

21. 13 Eliz. c. 5.—A voluntary settlement, whether of real or personal estate, may be defeated by the operation of 13 Eliz. c. 5, which makes void all instruments by which *creditors* “are or shall be in any way disturbed, hindered, delayed, or defrauded,” but such instruments as are made on “good consideration and *bonâ fide*” are excepted.

Deeds invalid as against creditors.—Upon the construction of this statute it has been held, that where the settlor was

(*g*) *Johnson v. Legard*, Turn. & Russ. 204; *Smith v. Garland*, 2 Mer. 123; but see *Hogarth v. Phillips*, 4 Drew. 360; *Peter v. Nicolls*, 11 L. R. Eq. 391.

(*h*) *Willats v. Busby*, 5 Beav. 193; *Daking v. Whimper*, 26 Beav. 568; *Townend v. Toker*, 1 L. R. Ch. App. 447. But he cannot file a bill to have the voluntary deed delivered up, *Hoghton v. Money*, 35 Beav. 98; S. C. 1 L. R. Eq. 154.

(*i*) *Doe v. Rusham*, 17 Q. B. 723; *Lewis v. Rees*, 3 K. & J. 132.

[(*a*) *Re Walhampton Estate*, 26 Ch. D. 391.]

(*b*) *Saunders v. Delew*, 2 Vern. 272, second note.

(*c*) *Bill v. Cureton*, 2 M. & K. 503; *M'Donell v. Hesilrige*, 16 Beav. 346; *Jones v. Croucher*, 1 Sim. & Stu. 315 (this case cites also the authority of Sir W. Grant in *Sloane v. Cadogan*, Append. to Sugd. Vend. & Purch., but the *dictum* does not appear); *Meek v. Kettlewell*, 1 Hare, 473, *per* Sir J. Wigram.

(*d*) *George v. Milbanke*, 9 Ves. 190; and see 1 Mer. 638; 7 Cl. & Fin. 463.